

Purpose

This document provides a general overview of leave types available to employees working in Serbia. It is intended as a reference model for companies that want to design their own leave rules in line with Serbian labour legislation. The information included here is high level and does not replace legal advice.

Eligibility

The policy applies to employees working under an employment contract in Serbia. Specific entitlements may differ based on contract type, working hours, or changes in legislation.

Annual Leave

Employees who work a full calendar year are entitled to a minimum of 20 working days of paid annual leave. Employers may grant additional days at their discretion. Annual leave is usually taken in agreement with the employer. A portion of the leave must be used within the current year, and remaining days may be carried into the next year within legally defined deadlines.

Public Holidays

Employees are entitled to paid time off on national and religious public holidays recognised under Serbian law.

Sick Leave

Employees must notify their employer as soon as possible when illness prevents them from working.

A medical certificate is required for absences of three days or more.

Compensation during sick leave is paid by the employer for the first 30 days, after which the state social insurance system takes over, following statutory rules.

Employees may also take sick leave to care for an ill immediate family member when approved by a doctor.

Maternity Leave

Pregnant employees may start maternity leave between 45 and 28 days before the expected delivery date.

Maternity leave continues until three months after childbirth. Pay during this period is provided through the state system based on prescribed calculation rules.

Childcare Leave

After maternity leave ends, an employee may continue with childcare leave until a total of 365 days have passed since maternity leave started.

In cases of multiple births or specific circumstances defined by law, leave may be extended.

Childcare leave is compensated by the state.

Special Childcare Leave

Parents of a child with severe developmental health conditions may request extended leave or part-time work until the child reaches five years of age. Approval requires supporting medical documentation. Compensation follows state regulations.

Paternity and Partner Leave

Fathers or partners may take paid time off at the time of childbirth. In certain cases defined by law, the father may use maternity or childcare leave instead of the mother.

Adoption Leave

Adoptive, foster, or guardian parents of a child under five years of age may take leave following the child's placement in the household. Compensation and duration follow the rules that apply to maternity and childcare leave.

Additional Paid Leave

Employers may grant paid leave for specific personal events such as marriage, childbirth of a spouse or partner, severe illness of a close family member, religious holidays, and bereavement.

Exact entitlements can be set by the employer as long as minimum legal requirements are respected.

Unpaid Leave

Employees may take unpaid leave in several legally regulated circumstances, including childcare beyond statutory periods, military service, public service duties, temporary assignments abroad, or personal emergencies.

Employers may also define optional unpaid leave within their internal rules.

Requesting Leave

Employees should request leave as early as reasonably possible. Employers may require documentation such as a medical certificate, birth certificate, or other relevant evidence depending on the type of leave.

Changes in Legislation

Labour law in Serbia may change, which means employers should regularly review and update their policies to ensure compliance.

Process to Request Leave of Absence

(Write here how to request leave of absence and insert link where to find more information. Also add point of contact for questions).

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